

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE: Social Worker Bachelor's Level License of KRISTAL LAKE License No. 076369 Respondent	CASE NO. 20-0212 SETTLEMENT AGREEMENT AND FINAL ORDER
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Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 IAC chapter 12, the Iowa Board of Social Work ("Board") and Kristal Lake ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing and Statement of Charges on May 10, 2021.
2. The Board has jurisdiction over the parties and the subject matter of this proceeding.
3. The factual circumstances contained in the Notice of Hearing and Statement of Charges are hereby incorporated into this Order. Respondent acknowledges that the allegations contained in the factual circumstances in the Notice of Hearing and Statement of Charges, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order. Respondent further acknowledges that the factual circumstances contained in the Notice of Hearing and Statement of Charges, by virtue of their incorporation into this Order, are now public and are available for inspection and copying in accordance with Iowa Code chapters 22 and 272C.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board's actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State's counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.

8. This Order shall be part of Respondent's permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent agrees to **VOLUNTARILY SURRENDER** her social work license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).

13. Respondent agrees not to use any words or titles which imply or represent that she is a licensed social worker, or to otherwise hold herself out to the public as a licensed social worker, or to engage in the practice of social work for which a license is required in the State of Iowa unless her license is reinstated.

14. Respondent shall immediately return her social work license to the Board.

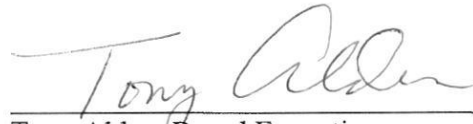
15. Any request for reinstatement shall be governed by 645 IAC 11.31 and 280.15. Respondent must wait a minimum of one (1) year from this Order prior to seeking reinstatement. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for the surrender of her license no longer exists, and that it is in the public interest for the license to be reinstated. Respondent understands that if an initial request for reinstatement is denied, the Board may establish requirements that must be met prior to considering a subsequent request. If Respondent's license is reinstated, Respondent understands it may be placed on probation, or otherwise restricted, and that the length of probation and the conditions of probation, or the terms of any restriction, will be established through further order of the Board in conjunction with an order granting reinstatement of Respondent's license.

16. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154C, and 272C and 645 IAC chapters 13 and 283.

2-11-22
Date

Kristal Lake
KRISTAL LAKE
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Social Work on February 14, 2022.

A handwritten signature in cursive script, reading "Tony Alden", written in black ink. The signature is positioned above a horizontal line.

Tony Alden, Board Executive
Iowa Board of Social Work

BEFORE THE IOWA BOARD OF SOCIAL WORK

RE: Social Worker Bachelor's Level License of KRISTAL LAKE License No. 076369 Respondent	CASE NO. 20-0212 NOTICE OF HEARING AND STATEMENT OF CHARGES
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COMES NOW the Iowa Board of Social Work ("Board") and files this Notice of Hearing and Statement of Charges against Kristal Lake ("Respondent"), PO Box 117, Kimballton IA 51543, pursuant to Iowa Code sections 17A.12(2), 17A.18(3), and 272C.3(1)"e", and 645 IAC 11.6.

A. TIME, PLACE, AND NATURE OF HEARING

Hearing. A disciplinary contested case hearing shall be held on August 9, 2021, before the Board. The hearing shall begin at 10:00 a.m. The hearing will be held electronically via the Zoom platform. At the time of your hearing, use the link <https://zoom.us/join>. Please enter the meeting ID number: 861 7879 3484, and then the meeting passcode: 682326. If you prefer to participate telephonically, please use the phone number 1-312-626-6799 and enter the same meeting ID number listed above.

Answer. Within twenty (20) days of the date you are served this Notice of Hearing and Statement of Charges, you may file an Answer pursuant to 645 IAC 11.12. The Answer should specifically admit, deny, or otherwise answer all allegations contained in sections C and D of this Notice of Hearing and Statement of Charges.

Filing of Pleadings. Pleadings shall be filed with the Board at the following address: Iowa Board of Social Work, Lucas State Office Building, 5th Floor, 321 E. 12th St., Des Moines, Iowa 50319, or by email to Tony.Alden@iowa.gov.

Presiding Officer. The Board shall serve as presiding officer at the contested case hearing, but the Board hereby delegates to an Administrative Law Judge from the Department of Inspections and Appeals the authority to make initial rulings on prehearing matters, and requests the administrative law judge be present to assist and advise the Board at the contested case hearing.

Pre-hearing Conference. Any party may request a prehearing conference in accordance with 645 IAC 11.17 to discuss issues related to the hearing.

Hearing Procedures. The procedural rules governing the conduct of the hearing are found at 645 IAC 11. At the hearing, you may appear personally or be represented by counsel at your own expense. You will be allowed the opportunity to respond to the charges against you, to produce evidence on your behalf on issues of material fact, cross-examine witnesses present at the

hearing, and examine and respond to any documents introduced at the hearing. If you need to request an alternative time or date for the hearing, you must comply with the requirements in 645 IAC 11.18. The hearing may be open to the public or closed to the public at your discretion.

Prosecution. The Office of Attorney General is responsible for representing the public interest (the State) in this proceeding. Copies of pleadings should be provided to counsel for the State at the following address:

Laura Steffensmeier, Assistant Attorney General
Iowa Attorney General's Office
Hoover State Office Building—2nd Floor
1305 E. Walnut St.
Des Moines, Iowa 50319

Ms. Steffensmeier can also be reached by phone at (515) 281-6690 or by e-mail at laura.steffensmeier@ag.iowa.gov.

Communications. You may not contact individual Board members in any manner, including by phone, letter, or e-mail, regarding this Notice of Hearing and Statement of Charges. Board members may only receive information about the case when all parties have notice and the opportunity to participate, such as at the hearing or in pleadings you file with the Board office and serve upon all parties in the case.

B. LEGAL AUTHORITY AND JURISDICTION

Jurisdiction. The Board has jurisdiction in this matter pursuant to Iowa Code chapters 17A, 147, 154C, and 272C.

Legal Authority. If any of the allegations against you are founded, the Board has authority to take disciplinary action against you under Iowa Code chapters 147, 154C, and 272C, and 645 IAC 13 and 283.

Default. If you fail to appear at the hearing, the Board may enter a default decision or proceed with the hearing and render a decision in your absence, in accordance with Iowa Code section 17A.12(3) and 645 IAC 11.21.

C. CHARGES

COUNT I

Respondent is charged with making suggestive, lewd, lascivious or improper remarks or advances to a client and may be disciplined pursuant to Iowa Code section 147.55(3) and 645 IAC 283.2(29)“b”.

D. FACTUAL CIRCUMSTANCES

1. Respondent holds Iowa license number 076369 to practice social work at the bachelor's level, which is currently active through December 31, 2022.
2. Respondent sent sexually explicit text messages, photos, and videos to a client.

E. SETTLEMENT

This matter may be resolved by settlement agreement. The procedural rules governing the Board's settlement process are found at 645 IAC 12.1. If you are interested in pursuing settlement in this matter, please contact Assistant Attorney General Laura Steffensmeier at (515) 281-6690.

F. FINDING OF PROBABLE CAUSE

On May 10, 2021, the Iowa Board of Social Work found probable cause to file this Notice of Hearing and Statement of Charges.



Tony Alden, Board Executive
Iowa Board of Social Work

Copies to:

Laura Steffensmeier
Assistant Attorney General
Office of the Attorney General of Iowa
1305 E. Walnut St.
Des Moines, IA 50319
ATTORNEY FOR THE STATE

Theodore R. Wonio
Rasmussen, Nelson and Wonio, PLC
23 W. 5th St.
Atlantic, IA 50022
ATTORNEY FOR RESPONDENT

PLEASE NOTE: If you require the assistance of auxiliary aids or services to participate in this matter because of a disability, immediately call 515-281-0233. (If you are hearing impaired, call Relay Iowa TTY at 1-800-735-2942).